Rwanda National Association
of Deaf Women
RNADW **"UMUCYO"**

ACCESS TO JUSTICE FOR DEAF AND HARD-OF-HEARING WOMEN AND GIRLS VICTIMS OF GENDER-BASED VIOLENCE

A GUIDE TO SERVICE PROVIDERS IN RWANDA

DECEMBER 2023

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crea

Women Gaining Ground

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Acronyms

1. **DWI**: Deaf Women Included
2. **GBV**: Gender-Based Violence
3. **HOH**: Hard-of-Hearing
4. **MIGEPROF**: Ministry of Gender and Family Promotion
5. **NUDOR**: National Union of Disability Rights Organisations in Rwanda
6. **RNADW**: Rwanda National Association of Deaf Women
7. **RSL**: Rwandan Sign Language
8. **SL**: Sign or Signed Language
9. **SRGBV**: School Related Gender-Based Violence
10. **SRHR**: Sexual and Reproductive Health and Rights
11. **UNCRPD**: United Nations Convention on the Rights of Persons with Disabilities
12. **UNPRPD**: United Nations Partnership on the Rights of Persons with Disabilities
13. **WHO**: World Health Organisation

Acknowledgments

The development of these guidelines represent an important milestone in our fight for the rights of Deaf women and girls in Rwanda. We are grateful to each and every person and institution for your wavering support and for making this work a success.

We extend our appreciation to our funder CREA through the Women Gaining Ground Program, for the continued financial and technical support in building the capacity and transformative leadership of women and girls with disabilities in Rwanda.

We are grateful to our Government partners for their continued collaboration, for feminist and disability-rights organizations and networks for their inputs and for sharing resources referenced in the guidelines.

We are thankful for the Deaf community in Rwanda for sharing their stories and experiences; and we hope that your ideas have been captured.

We would like to appreciate all RNADW staff and Sign Language interpreters for their expertise and efforts in making this work a success. Specifically, Diane Niyonkuru Project lead and Umutoni Molly Sign language interpreter.

We would like to thank the Consultant who provided technical expertise and drafted the guidelines, as well all the people consulted, in Rwanda, Uganda, Zimbabwe, United States of America and many more.

In Solidarity,

Mukashema Dativa

Executive Director

Section 01

Introduction

These guidelines are a result of years of collective experiences and engagement with Deaf and Hard-of-Hearing women and girls, consultations with national institutions responsible for addressing gender-based violence (GBV) and women's rights organizations engaged in promoting disability rights. Rwanda National Association of Deaf Women (RNADW) envisions these guidelines as a resource for all public authorities who are responsible for delivering services and supporting Deaf victims of sexual and gender-based violence in Rwanda. The aim is to enhance their disability awareness and provide services inclusive of and tailored to the needs of Deaf and Hard-of-Hearing women and girls. Additionally, these guidelines are intended for use by various professionals supporting Deaf and Hard-of-Hearing women and girls, including private actors and civil society organisations. Ultimately, the goal is to enable Deaf and Hard-of-Hearing women and girls to exercise their rights and lead a violence-free life.

Section 02

Understanding Deaf Culture

The Deaf community comprises of Deaf and Hard-of-Hearing individuals who share a common language, experiences, values, and a unique way of interacting with each other and with hearing people. This unity form what we call Deaf culture. While the Deaf community is made up of diverse people with varying levels of hearing loss, Deaf culture is a uniting factor with shared identity and a sense of belonging for the Deaf community. Deaf persons' cultural and linguistic identity is recognized in the United Nations Convention on the Rights of Persons with Disabilities (UNCRPD) and its Optional Protocol adopted in 2006 and ratified by the Government of Rwanda in 2008.

Below are commonly used terms in the Deaf community in line with international standards:

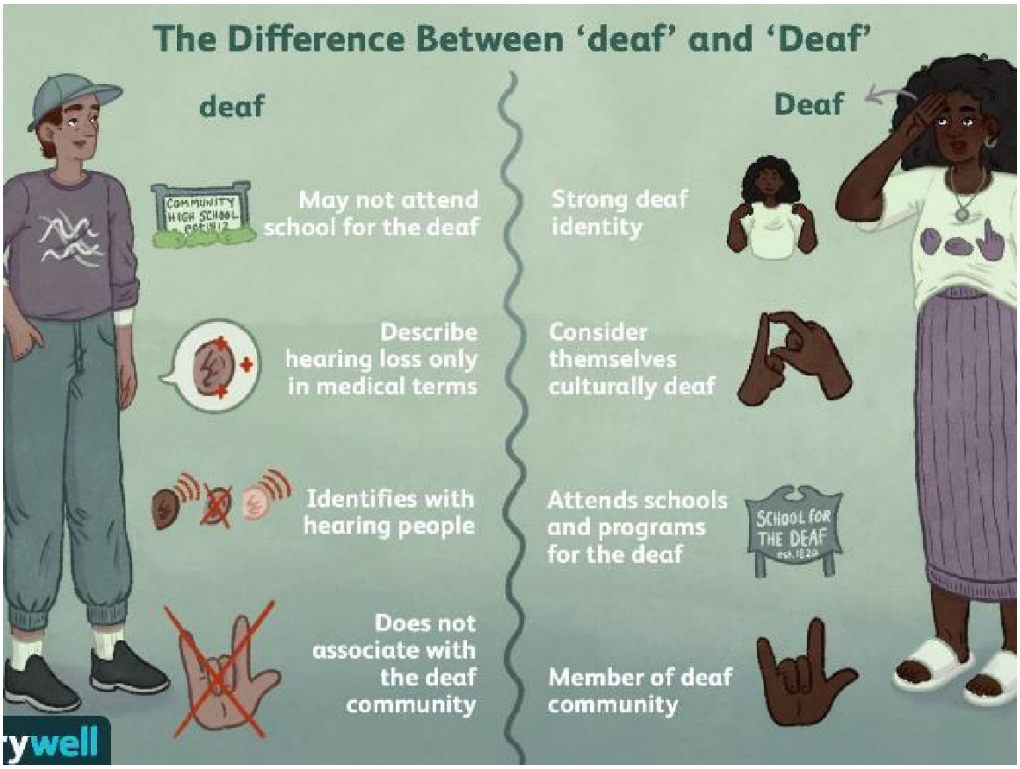

Figure 1 "deaf" versus "Deaf" (Source: VeryWellMind.com)

deaf Person (lowercase d): Used to describe individuals with severe to profound hearing loss and with little or no residual hearing. Some individuals may or may not identify with Deaf culture. In this category, deafness is seen from a medical point of view.

Deaf Person (uppercase D): Some Deaf individuals use this term to show their acceptance of Deafness as a socio-cultural and linguistic identity, and communicate primarily through Sign Language(s). In this category, Deaf people generally do not see their lack of hearing as a disability or medical condition.

Deafness: Based on the above definitions, deafness in medical terms is defined as a degree of hearing loss that hinders a person from understanding spoken language.[1] It can also be viewed with a socio-cultural lens by virtue of

1 *Elzouki, (2012).*

using Sign Language. While the medical model of disability focuses on fixing the condition, the social model focuses on fixing the society that creates unnecessary barriers. The distinction between the medical and social models is of great importance to the Deaf community, to which Deafness is not a disability but a membership to a linguistic and cultural minority.[2]

Hard of Hearing (HOH) Person: An individual who has mild to moderate hearing loss, retaining some residual hearing. They might also be referred to as deaf with a lowercase "d." They can benefit from loudly spoken speech or assistive technology such as hearing aids, utilizing both speech and Sign Language for communication.

Sign Language: A visually based and spatial language[3] and the first language for most Deaf individuals. It involves using the whole body, hand gestures, facial expressions, space and many other elements comprising its grammar that are used to organize sentences and speech to convey meaning, just like any other language. While there is no universal means of communication in the Deaf community, wherever communities of Deaf people exist, Sign Languages have developed and evolved as handy means of communication. Sign Language is recognised by UNCRPD: "Persons with disabilities shall be entitled, on an equal basis with others, to recognition and support of their specific cultural and linguistic identity, including sign languages and deaf culture." (Article 30(4))

Although there is no documented research on the history of Deaf people in Rwanda, Rwandan Sign Language (RSL) has had its own developmental milestones over the years. It originated out of interaction with Deaf persons in the Centre des Jeunes Sourds et Muets, a school for the Deaf in Huye District (former Butare) initiated by the Brothers of Saint Gabriel organisation in 1973. RSL has had influences from other Sign Languages including Ugandan, American, Congolese, and French Sign Languages until it was harmonized into one recognizable and documented language. In 2009 the first Sign Language dictionary was published and all the native Rwandan signs were included in the dictionary. The second edition was published in December 2023 on the International Day of Persons with Disabilities, and it expanded signs from 900 to 2000.

2 *Social Model vs Medical Model of disability by Disability Nottinghamshire https://www.disabilitynottinghamshire.org.uk/index.php/about/social-model-vs-medical-model-of-disability/*

3 *Spatial language is a domain that focuses on descriptions of objects and their relations in a given environment or space.*

Persons with Disabilities: Include individuals with long-term physical, mental, intellectual or sensory disabilities. These disabilities, combined with attitudinal and environmental barriers, can limit their full and effective participation in society. Disability results from the interaction between a person and their surroundings.

Sign Language Interpretation: Involves a professional interpreter providing signed language communication to convey messages between hearing individuals and Deaf individuals.

Ableism: Is commonly described as the belief system that underlies negative attitudes, stereotypes and stigma that devalue persons with disabilities on the basis of their actual or perceived impairments. Ableism considers persons with disabilities as being less worthy of respect and consideration, less able to contribute and participate, and of less inherent value than others.

Inclusion: Means every person has the possibility to participate fully and equally in all areas of life in society. Inclusion involves practices and policies designed to identify and remove barriers, like physical, communication, and attitudinal obstacles, that hamper individual ability to fully participate in society as persons without disabilities.

Section 03 Debunking Myths and Stereotypes about Deaf People and Deaf Culture

There are many misconceptions about Deaf people and the Deaf culture in general that contribute to social stigma and unrealistic judgements against Deaf people, still prevalent in Rwanda. Below we offer some of the most common myths and stereotypes and facts to demystify them.

Myth/Stereotype	Fact
Sign Language is universal	NO - Sign Language is not universal, different Sign Languages are used in different countries or regions. Some studies indicate there are between 138 and 300 different types used in the world. In Rwanda we use Rwandan Sign Language.
Sign Language is not a complete language	NO – Sign Language has a unique grammar a complete language with grammar rules.

Myth/Stereotype	Fact
Sign Language develops naturally	NO/YES - Deaf babies will instinctively start to gesture at an early age. However, since most Deaf children (90%) are born to hearing parents who do not sign, they may lack the stimuli to develop Sign Language until they go to school and mix with other SL users.
All Deaf people use Sign Language	NO - Deafness degrees vary, so do modes of communication. RSL, speechreading, writing, gesturing, and speaking are all methods of communication which may be utilized by different Deaf people.
All Deaf people can read lips	NO – Only a small percentage of Deaf people can be understood depending on the Deaf person's proficiency in lip-reading and also the language being spoken as some languages are easier to lip-read than others.
Deaf people cannot speak	NO – Some Deaf people are able to speak but with varying levels of ability or intelligibility. However, some may choose not to speak even though they may be able to speak; it is a matter of choice.
Hearing aids make all Deaf people hear	NO – Deafness occurs across a spectrum. Many profoundly Deaf people cannot benefit from hearing aids. These are assistive devices that support in amplifying sound, and their use is restricted to those who have enough residual hearing to make effective use of them.
All Deaf people wear hearing aids	NO – Wearing hearing aids is a choice.
Deaf people are harsh and emotional	NO - Facial expressions and body language are part of Sign Language grammar. These aspects of Sign Language grammar may seem "overly emotional" to a lay person.
Deaf people are less intelligent than hearing people	NO - Hearing and speech usage have nothing to do with intelligence.

Adapted from A Guide to Sign Language Usage for Courts (2021) by Deaf Women Included & VAWnet https://vawnet.org/sc/myths-and-realities

Section 04

Rights of Persons with Disabilities

The Government of Rwanda is committed to an inclusive sustainable development agenda that leaves no one behind, including persons with disabilities. In 2008, Rwanda ratified the UNCRPD and its Optional Protocol. Its purpose is to promote, protect and ensure the full and equal enjoyment of all human rights and fundamental freedoms by all persons with disabilities, and to promote respect for their inherent dignity. This unique and binding framework brought an important shift from viewing persons with disabilities as "objects" of charity, medical treatment and social protection towards viewing persons with disabilities as "subjects" with rights, who are capable of claiming those rights and making decisions for their lives based on their free and informed consent as well as being active members of society.[4]

Facts about Deaf Persons (WHO, 2021)

- Over 5% or approximately 430 million people in the world have a hearing impairment.
- 1 in 4 people are projected to have hearing problems by 2050.
- Individuals are either born deaf, can acquire hearing loss during birth or at the course of their life.
- Causes of hearing loss include genetic factors such as hereditary and non-hereditary hearing loss, intrauterine infections, birth asphyxia, low-birth weight, chronic ear infections, meningitis, chronic disease, smoking, natural aging, exposure to loud noise, trauma to the ear, head injury, ototoxic medications, etc.

The Rwandan Constitution of 2003 amended in 2015 guarantees nondiscrimination for all as stated in Article 16: "All Rwandans are born and remain free and equal in rights and duties. Discrimination of whatever kind based on, inter alia, ethnic origin, tribe, clan, color, sex, region, social origin, religion or faith, opinion, economic status, culture, language, social status, physical or mental disability or any other form of discrimination is prohibited

4 *United Nations Website https://social.desa.un.org/issues/disability/crpd/convention-on-the-rights-of-persons-with-disabilities-crpd*

and punishable by law".

Furthermore, other laws were enacted to provide for legal protection of persons with disabilities:

- Law N° 01/2007 Relating to Protection of People with Disabilities in General;
- Law N° 02/2007 Relating to the Protection of Disabled Former War Combatants;
- Law N°03/2011 Determining Responsibilities, Organization and Functioning of the National Council of Persons with Disabilities.

The Council was established in 2011 to promote the welfare of people with disabilities and disability mainstreaming in other sectors such as health, education and access to justice.

It is worth noting however, that these laws are not fully aligned with appropriate language stated in the UNCRPD, and contain pejorative terms and a medical model of disability. There are ongoing efforts to review these laws.

In 2014, the National Council for Persons with Disability published Disability Mainstreaming Guidelines to facilitate the integration of disability in all sectors of development. In 2021, a National Policy of Persons with Disabilities and its Four-Year Strategic Plan (2021-2024) were adopted to promote rights of persons with disabilities and ensure they enjoy full inclusion and equal participation in society. The policy reaffirms the human rights-centered model of disability which recognises the inherent dignity, worth, and human rights of persons with disabilities.

Section 05 Deaf and Hard-of-Hearing Women and Girls' Experiences of GBV

Gender-Based Violence (GBV) is any act that results in, or is likely to result in, physical, sexual or psychological harm or suffering, including threats of such acts, coercion or arbitrary deprivations of liberty, whether occurring in public or private life.[5] The UNCRPD recognises the need to protect persons with disabilities from violence: "*States Parties shall take all appropriate legislative, administrative, social, educational and other measures to protect persons with*

5 *Article 1 of the United Nations Declaration on the Elimination of Violence against Women.*

disabilities, both within and outside the home, from all forms of exploitation, violence and abuse, including their gender-based aspects." (Article 16, 1).

Today, there is limited research around the world and in Rwanda to understand the prevalence of GBV within the Deaf community. It is widely acknowledged however, that persons with disabilities experience higher rates of exploitation, violence and abuse compared to people without disabilities,[6] with violence against women being as high as two to four times likely to occur compared to women without disabilities.[7] It is important to also stress that Deaf women and girls experience violence that is specific to the nature of their disability, which is rooted in both ableism, gender-based discrimination and social stigma. When these factors intersect, violence has unique forms and causes, and results in unique consequences.[8]

Because many Deaf and HOH women and girls may lack information on what constitutes GBV, they may struggle to recognise and label their experiences as violence, or simply ignore that they are victims and that the violence inflicted upon them is a crime.[9] Additionally, misconceptions that women with disabilities are not sexually active and therefore, do not need reliable sexual and reproductive health information put them at higher risk of sexual violence.

Furthermore, School-Related Gender-Based Violence (SRGBV), which is any type of gender-based violence that occurs in and around school environments prevails more among Deaf girls due to communication barriers.[10] Deaf girls report that the current comprehensive sexuality education curriculum contents are not helpful as teachers lack basic skills in Rwandan Sign Language communication, more so how to explain certain terminology related to sexuality.

Because most of the perpetrators of GBV are people close to Deaf and HOH women and girls whom they may depend on every day, like caregivers, educators, spouses and family members, this exposes them to greater risks of a wide range of perpetrators compared to women and girls without disabilities.

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6 *Combrinck (2017)*

7 *Hague, Thiara and McGowan (2007).*

8 *Ortoleva, S and Lewis, H., (2012).*

9 *UNDP (no publishing date): Guidelines for Access to Justice of Deaf Women Victims of Gender-Based Violence, Argentina.*

10 *Samina et al (2020)*

While Deaf and Hard-of-Hearing women and girls may experience all forms of GBV, RNADW's recent consultations with the Deaf community, public service providers and disability-rights organisations highlighted five major forms of violence:

Physical violence is the intentional use of physical force with the potential to cause harm, injury, disability or death.

Unique and disability-specific forms of physical violence against Deaf and Hard-of-Hearing women and girls may include neglect, social isolation, burning, etc.

Psychological violence is trauma to the victim caused by acts, threats of acts or coercive tactics.

Unique and disability-specific forms of psychological violence against Deaf and Hard-of-Hearing women and girls may include using offensive and outdated terms or language, intentional misinterpretation, mocking one's speech or communication skills, verbal abuse targeting one's disability, exclusion from conversations, etc.

Sexual violence is an act of forcing another individual, through violence, threats, deception, cultural expectation, weapons or economic circumstances, to engage in sexual behavior against the person's will

Unique and disability-specific forms of sexual violence against Deaf and Hard-of-Hearing women and girls may include sexual coercion, sexual exploitation, sexual harassment, belief that Deaf women are asexual, forced pregnancy, forced sterilization, and forced and/or unsafe abortion.

Economic violence is the denial of economic rights to property, succession, employment or other economic benefits.

Unique and disability-specific forms of economic violence against Deaf and Hard-of-Hearing women and girls may include denial to assisted devices or Sign Language interpretation, denial of access to education and employment, exclusion from financial decisions, exclusion from family inheritance and property ownership, etc.

School-Related Gender-Based Violence is any threat or act of sexual, physical or psychological violence occurring in and around schools.

Unique and disability-specific forms of SRGBV may include no access to or denial of communication devices, bullying, hitting, name-calling, social exclusion, sexual abuse by school administrators and peers, sexual coercion, defilement, etc.

06 Barriers to Access to Justice for Deaf Victims of GBV

One of the most important aspects in GBV response is the ability to minimize further trauma to the victim and ensure the support given is timely and optimal. Rwanda's GBV referral pathways comprise of 44 Isange One Stop Centres across the country responsible for coordinated efforts in GBV response. However, these pathways are not clearly known by the public, and there is weak multi-sectoral coordination.[11]

Deaf and Hard-of-Hearing women and girls may face additional barriers including but not limited to:

1. Limited access to information about GBV response and referral mechanisms tailored to Deaf women and girls' communication needs.
2. Lack of basic skills in provision of Sign Language among service providers including decentralized and centralized services like hospitals/health centres, the National Police Anti-GBV Units, law enforcement agencies, courts, social rehabilitation agencies and Isange One Stop Centres.
3. There are fewer qualified and free of charge Rwandan Sign Language interpreters or Certified Deaf Interpreters available for GBV response services.
4. Where Rwandan Sign Language interpretation assistance is provided, it may be delayed, which affects timely gathering of evidence.
5. Where professional Sign Language interpreters are availed, Deaf and HOH women and girls are faced with having to disclose their case in the presence of more than one person.
6. Existing GBV hotlines are not adapted to the communication needs of Deaf and Hard-of-Hearing women and girls.
7. Many public service providers still have negative attitudes and biases against persons with disabilities.

11 HAGURUKA (2018)

Section 07 Considerations When Assisting Deaf and Hard-of-Hearing Victims of GBV

In order for Deaf and HOH women and girls to be effectively accompanied in their quest for justice, RNADW urges Government institutions responsible for assisting GBV victims as well as members of civil society and the private sector to consider the following recommendations:

A. Promote the right to inclusive communication

Communication is a fundamental, universal and indivisible human right and an essential requirement for access to justice services, and for Deaf and HOH women and girls to be included in society, enjoy both their autonomy and a life free from violence. Ensuring inclusive communication for Deaf and HOH victims is probably the most important tool needed to bridge the gap between policy and practice.

Recommended Language
deaf person, person who is deaf, person with a hearing disability, person with a hearing impairment, person with hearing loss, hard-of-hearing person, deafblind person

Language to avoid
The deaf, hearing impaired, deaf and dumb, deaf and mute

Deaf victims of GBV have the right to receive and be facilitated with Rwandan Sign Language Interpreters and/or Certified Deaf Interpreters of their choice or they are familiar with, and free of charge. An additional value would also be ensuring these professionals are knowledgeable on gender-related matters, legal concepts and terminology, human rights, gender-based violence, and sexual and reproductive health and rights so they are able to tailored support to Deaf victims.

It is paramount to allocate sufficient resources to Sign Language, ensure public service providers receive ongoing training on RSL and the Deaf culture in order to increase their deaf awareness. The recently launched RSL dictionary is an opportunity for actors to disseminate it, develop teaching materials including its digitalization. Additionally, avail other disability assistive devices, augmentative and alternative communication, and all other accessible means, modes and

formats of communication of the victim's choice. These may include use of visual and written communication such as WhatsApp, culturally and linguistically adjusted documents and websites in screen-reader friendly formats.

Finally, the Government should promote a culture hiring Deaf people to work in service provision, such as paralegals, community health workers and GBV mediators. This not only will address unemployment challenges Deaf persons face, but it will also set a good example for inclusivity.

B. Do's and Don'ts for interpersonal communication

DON'T - Use medical language when referring to Deaf persons, or treat Deafness as a disability that needs to be fixed. Avoid pity, patronizing attitudes or thinking Deaf persons are intrinsically vulnerable.	**DO** - Recognize and value the unique cultural and linguistic identity of Deaf individuals. Be open to learning about their experiences and perspectives.
DON'T - Assume that all Deaf people know Sign Language.	**DO -** Respect a victim's preferred mode of communication and adapt accordingly. Some Deaf persons prefer Sign Language, while others may use lip-reading or assistive technologies. If the person uses Sign Language, do ensure to avail an interpreter of their choice, as much as possible. If necessary, use written communication by making notes or drawings on paper.
DON'T - Assume that all Sign Language interpreters are skilled in Sign Language.	**DO -** Listen to the Deaf person if they say they are not sure of the skills of a certain Sign Language interpreter.
DON'T - Interrupt, assume or try to guess what a Deaf person is trying to communicate.	**DO -** Practice non-judgmental listening. Be patient and understanding and give the person enough time to express themselves and make choices for themselves. Seek for clarification when there are misunderstandings.

DON'T – Speak to a Deaf person without introducing yourself	**DO -** Introduce yourself by fingerspelling your name. Sign names are important when communicating within the Deaf community as they identify an individual, differentiate them from the next person as well as improve efficiency in communication.
DON'T - Touch a Deaf person without permission. Like anyone else, Deaf persons appreciate personal space.	**DO -** Before starting a conversation, make sure you have the person's attention. You can gently tap their shoulder or wave your hand to establish eye contact. Always ask for permission before touching or gesturing towards them.
DON'T - Cover your mouth when speaking to a Deaf person.	**DO -** Make sure your lips are visible when talking to a Deaf person. Face the person and maintain eye contact throughout the conversation, as lack of eye contact may be considered as being indifferent.
DON'T - Shout or speak with exaggerated lip movements.	**DO -** Speak clearly at a moderate pace.
DON'T - Dismiss Deaf persons in conversations.	**DO -** Include Deaf persons in communications at all times.

C. Enhance collaboration between stakeholders and the Deaf community

The famous slogan Nothing About Us Without Us is used to infer to the principle of meaningful participation of people with disability in processes and decisions that affect their lives, contrary to approaches promoted in the past that view people with disabilities as a charity case.

The government should consider enhancing consultation and collaboration with the Deaf community, Deaf activists, disability-rights organisations and professionals in Sign Language in addressing GBV and setting anti-GBV policy agendas, policy implementation and monitoring. This will build trust among actors.

Furthermore, the Government should ensure mechanisms for GBV referral in the community and school environments are strengthened in order to enhance support to Deaf girls in schools.

Disability-rights organisations and Government should invest in educating family members, caregivers and social networks of Deaf and Hard-of-Hearing women and girls about Deaf culture and the rights of Deaf people. This will increase reduce their risk of experiencing GBV and will give them a chance to break free from violence.

D. Other policy considerations

The Government of Rwanda should consider enacting and enforcing an organic law which recognizes Sign Language as an official language. This will ensure the education of Sign Language is institutionalized.

In order to effectively implement the new policy and strategy on Persons with Disabilities, the Government should direct all public institutions to have a disability inclusion strategy that will ensure specific challenges that persons with disabilities within various sectors are accounted for and addressed.

Civil society and Government institutions should invest in research to better understand the prevalence and impact of GBV on Deaf and HOH people, particularly those with multiple forms of vulnerabilities.

Government institutions should strengthen mechanisms for collecting disaggregated data on matters affecting Deaf and HOH women and girls such as teenage pregnancy, and mainstreaming disability in local and national planning.

About RNADW

Rwanda National Association of Deaf Women RNADW "Umucyo" was founded in 2005 by a group of Deaf women to advocate for their rights.

Our Vision	A society which respects the basic rights of Deaf Women and girls, which considers as priority their education and their welfare, and in which they are perfectly integrated, provided equal opportunities so as to actively participate in the national development process.
Our Mission	We exist to defend the rights of Deaf women and promoting their health and socio-economic welfare.
Our Values	i. Mutual respect ii. Accountability iii. Transparency iv. Team work v. Grassroots based
Our Constituencies	Deaf women and hard of hearing women, children and girls in Rwanda.

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